



A-OSP

Legal & Operating Architecture

How the OpCo + standards-vehicle structure is built, owned and governed — with commercial economics governed by Pitch

This document is for diligence, not persuasion: it answers how the structure works, who controls what, and why each capital type fits where.

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draft · indicative structures and costs · not legal, tax or financial advice · to be confirmed with Italian counsel and a notary

WHY THIS MATTERS

The structure protects the moat — it is not the business plan

A proof format no single vendor controls is one an auditor, a regulator or a procurement office can rely on. **The two-entity design is what makes the format trustworthy, fundable and hard to capture — three competitive advantages at once.**

Trust

An inspectable, standards-vehicle-held specification beats a proprietary one where evidence is the product

Funding

Non-profit takes grants and public capital; company takes equity — neither contaminates the other

Non-capture

Incumbents can copy features; they cannot retroactively own a neutral, already-adopted open format

This memorandum shows the wiring behind that claim: entities, IP, conflict governance, contracts, capital routing, legal gates and jurisdictional expansion. Commercial economics live in Investment Pitch.

Three rules govern every structural decision

1 · Inspectability

What carries trust (the spec, the format, the reference core) is open and foundation-held. What carries margin (product, deployment) is the company's. Buyers can always inspect the thing they're trusting.

2 · Separation of capital

Grants and public money flow only to the non-profit; equity flows only to the company. No investor takes a position in the commons; no grant subsidizes private equity value. Clean for both auditors and grant bodies.

3 · Staged reversibility

Start with the lightest legal form that works (SRL + ETS). Every upgrade — SpA, Foundation, holding, foreign entity — is triggered by a gate (revenue, round, market), never paid for upfront. The structure grows only when evidence justifies it.

Cross-reference: the commercial case lives in Investment Pitch; the proof mechanics in the Whitepaper [WP] / Technical Due Diligence [TechDD]. This memorandum is the legal and operating layer beneath both.

What each one is, holds and is bound by

Standards vehicle — lightweight → Foundation-bound

- Start with the lightest standards vehicle counsel confirms as fit-for-purpose. ETS/RUNTS or Foundation are gated options, not automatic day-one overhead.
- Holds: the open specification, the trademark, the conformance mark, the open-core reference implementation
- Bodies: members' assembly, governing board, supervisory body above statutory thresholds, auditor where required
- Funded by: grants, donations, public capital, training and membership — never equity
- Purpose lock: third-mission, standards, education, SME clinic

OpCo — SRL → SpA (for-profit)

- Start as an SRL (or SRLS to zero notarial cost); convert to SpA at the Scenario-C / Series-A gate
- Holds: all product IP, the managed runtime, enterprise modules, integrations, customer contracts
- Bodies: board (3 at closing), control body above thresholds, ESOP plan, shareholders' agreement
- Funded by: equity (SFP / SAFE-equivalent), revenue, commercial licences
- Receives: a durable commercial licence to the core from the standards vehicle / future Foundation after activation

OpCo is Italian at inception. The standards vehicle starts lightweight and grows only when adoption, funding and governance justify the overhead. Jurisdictional expansion comes by trigger, not ambition.

Decided, not open: OpCo owns the product, Standards vehicle / future Foundation stewards

The Mozilla / Eclipse pattern — a neutral standards body, a commercial entity that builds on it.

Foundation owns

- The open specification of the evidence format
- The trademark + the «A-OSP-compliant» conformance mark
- The open-core reference implementation (network-copyleft)
- Neutral governance of the spec (standards committee)

OpCo owns

- All product IP: enterprise modules, managed runtime, integrations
- A durable, broad commercial licence to the core
- The commercial brand, customer contracts, data processing
- Equity, ESOP, the cap table — what investors buy

Why this resolves the investor's worry: the OpCo cannot unilaterally fork or close the standard (the Foundation governs the spec, with an independent board) — which is exactly what makes the standard credible and therefore valuable. The conformance mark is the toll: granted by the standards vehicle / future Foundation after activation, operationalized through OpCo tooling and services. Founder IP is assigned to the OpCo at day-zero; the spec is contributed to the standards vehicle / future Foundation under the applicable CLA under a contributor licence agreement.

CONFLICT-OF-INTEREST GOVERNANCE

The founder sits in both entities — here is how that is controlled

The first question serious counsel asks. Addressed head-on, not hidden.

The exposure

Founder is CEO of the OpCo and a President and board member of the standards vehicle / future Foundation; the OpCo licenses IP from, and pays conformance to, the Foundation — related-party transactions

Independent standards-vehicle / future-Foundation board

At standards-activation, the governing board has an independent majority; the founder does not chair it and abstains on OpCo-related resolutions

Related-party policy

standards vehicle / future Foundation ↔ OpCo licence, fees and conformance terms are set at arm's length, documented, and approved by the independent directors / supervisory body

Standards neutrality

Spec decisions sit with the standards committee (associations, academia, anchor clients), not with the OpCo — the format cannot be steered commercially

Audit trail

All inter-entity transactions logged; conflict register maintained; reported in both entities' filings — the founder's own audit discipline applied internally

The founder's 15 years in internal audit and as a 231 supervisory-body secretary are the asset here: conflict governance is the discipline he already practices professionally.

The documents that make the two engines run as one system

Foundation ↔ OpCo licence

durable commercial licence to the core; scope, term, fees, conformance terms — arm's length

IP assignment (founder → OpCo)

all founder-created product IP assigned day-zero; the first thing diligence checks

Contributor Licence Agreement

how the OpCo and third parties contribute to the open core held by the standards vehicle / future Foundation

Trademark & conformance policy

who may use «A-OSP-compliant», on what terms, revocation rights

Channel / white-label agreement

associations and advisors: revenue share, data ownership, member terms

DPA + model-provider addendum

which model, where it runs, what never leaves the client's perimeter

Shareholders' agreement

tranches on gates, vesting, ESOP, tag/drag, pre-emption, board composition

Conflict-of-interest policy

related-party rules across both entities; the register and approval flow

Draft templates for the • items live in the data room; the rest are the legal workstream of the first 90 days (slide 13).

Which capital type fits which entity — and why they don't mix

Capital type	Entity	Allowed use	Forbidden
Equity	OpCo	product, team, GTM, runtime	ownership of the standards vehicle / future Foundation
Grants/public	standards vehicle / eligible R&D	open spec, public goods, SME clinic	inflate private equity value
Revenue	OpCo	product/service delivery	fund neutral standard without policy
Donations/dues	standards vehicle / eligible R&D	mission, training, governance	investor return

Which capital type fits which entity — and why they don't mix

Stage	Legal/operating requirement
Formation	OpCo incorporated, founder IP assigned, basic counsel/CFO support
Institutional formation	board, SHA, ESOP, DPA, licence, conflict register
Standards activation	standards committee, conformance policy, independent majority
Scale	control body, audit function, professional secretariat if justified

The founder's own discipline, applied to his own institution

Boards

OpCo board of 3 at closing (founder, investor, independent); standards-vehicle board with independent majority at activation

Advisory board

3–5 advisors from audit, academia, fintech/public sector; compensation, if any, governed by OpCo policy and counsel review

Standards committee

associations, anchor clients, academia govern the spec — commercial neutrality by design

Internal control & risk

control framework, risk register, related-party register — built by a 15-year internal auditor and 231 OdV secretary

Reporting cadence

semi-annual gates in the shareholders' agreement; quarterly reporting with AS-IS / TARGET / HYPOTHESIS tags on every metric

Stop mechanism

failed gates freeze tranches and round 2 — what remains is an inspectable asset, not a write-off

Control is not overhead here — it is the product applied to the company: A-OSP governs AI work the way the founder governs the institution.

Jurisdictional expansion by trigger, not ambition

Years 1–2 · Italy

SRL + ETS, single jurisdiction. Prove paid pull, conversion, the channel. Everything signable fast.

Years 2–4 · EU Pilot

Holding decision at Series A (e.g. an EU holding over the OpCo); standards committee opens to EU associations; first cross-border pilots.

Year 4+ · Global

Per-jurisdiction entities only where the market justifies; the standards vehicle may evolve into the international standards home if adoption justifies it; localized conformance.

Why this order is safe: the standard travels through adoption and standards-vehicle governance, not through expensive legal replication. The Italian structure is never thrown away — it is wrapped, then extended. International cost is incurred only after the standard has proven it can spread. The endgame is explicit: the Foundation becomes the international home of the proof standard — the Mozilla / Eclipse path, where adoption, not legal footprint, is what scales the category.